

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF YURGILEVICH AND OTHERS v. RUSSIA

(Applications nos. 75231/17 and 16 others –
see appended list)

JUDGMENT

STRASBOURG

7 September 2023

This judgment is final but it may be subject to editorial revision.



In the case of Yurgilevich and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 6 July 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). Some of them also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained of their unlawful detention (deprivation of liberty), in the context of administrative-offence or criminal proceedings (see appended table), in contravention of Article 5 § 1 of the Convention.

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018, and *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018), that any deprivation of liberty be properly documented (see *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017), that the compensation granted, when the domestic court finds the deprivation of liberty unlawful, be adequate, in accordance with the Court's practice (see *Grigoryev and Igamberdiyeva v. Russia* [Committee], no. 10970/12, 12 February 2019), and that a delay in implementing a decision to release a detainee that exceeds some hours is incompatible with the Convention requirements (see *Butkevich*, cited above, § 67). The authorities' failure to comply with these requirements, in the Court's view, led it to finding a violation of Article 5 § 1 of the Convention (see the above-mentioned cases, as well as *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018).

9. The Court has also held on many occasions that absence of an arrest record must in itself be considered a most serious failing, as it has been the Court's constant view that unrecorded detention of an individual is a complete negation of the fundamentally important guarantees contained in Article 5 of the Convention and discloses a most grave violation of that provision. The absence of a record of such matters as the date, time and location of detention, the name of the detainee, the reasons for his detention and the name of the person effecting it must be seen as incompatible with the requirement of lawfulness and with the very purpose of Article 5 of the Convention (see *Fortalnov and Others v. Russia*, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018).

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

11. As regards the administrative-offence proceedings, the Court discerns nothing in the official records to conclude that recourse to such procedures was justified, as required by the Russian law. In particular, the applicants were taken to the police station as administrative suspects, whereas there was no evidence or assessment that it was impracticable, on the spot, to compile the offence records and to achieve the objectives set out in the Code of Administrative Offences (CAO), that is to establish the suspects' identity (see *Korneyeva*, cited above, §§ 34-36). It concludes that the national authorities failed to comply with the applicable rules of domestic procedure and considers that the applicants' escorting, arrest and detention were not "in accordance with a procedure prescribed by law".

12. As regards "criminal" detention, the Court finds that the delay of the applicant's release (application no. 53031/18) and the applicant's unrecorded detention (application no. 50533/21) were unlawful (see *Butkevich*, cited above, § 67; *Ruslan Yakovenko v. Ukraine*, no. 5425/11, § 68, ECHR 2015; and *Fortalnov and Others*, cited above, §§ 78-84).

13. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

14. In some applications the applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

15. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention and its Protocols in the light of its findings in *Tomov and Others v. Russia*, nos. 18255/10 and 5 others, §§ 114-42 9 April 2019, concerning inhuman conditions of transport of detainees; *Blokhin v. Russia* [GC] no. 47152/06, §§ 120-50, ECHR 2016, concerning lack of medical assistance in detention; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, related to the absence of a prosecuting party in the proceedings under the CAO; *Misan v. Russia* no. 4261/04, § 70, 2 October 2014; and *Kruglov and Others v. Russia*, nos. 11264/04 and 15 others, §§ 123-38, 4 February 2020, as to various shortcomings related to police searches at the applicants' premises; *Assotsiatsiya NGO Golos and Others v. Russia*, no. 41055/12, §§ 76 and 88-89, 16 November 2021, concerning unjustified sanctioning of an NGO for disseminating election-monitoring material on the basis of statutory ban on all election-related publications during pre-election "silence period"; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019,

concerning administrative convictions for making calls to participate in public events; *Frumkin v. Russia*, no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia*, no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia*, no. 21613/07, 3 October 2013, as regards dispersals of public assemblies; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, and *Tsvetkova and Others*, cited above, §§ 178-88, concerning lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

16. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of the fairness of the administrative-offence proceedings, and the applicant in the application no. 21841/18 raised an additional complaint under Article 5 § 4 on account of inability to obtain a judicial review of the lawfulness of her past detention. In view of the findings in the above paragraphs, the Court considers that there is no need to deal separately with these complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

17. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

18. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 5 § 1 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention, as well as the complaint under Article 5 § 4 of the Convention;

4. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

5. *Holds* that there has been a violation of the Convention and its Protocols as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 7 September 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention
(unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	75231/17 16/10/2017	**Irina Vladimirovna YURGILEVICH** 1965		12/06/2017, 2.50 p.m.	13/06/2017, 11.00 p.m.	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"		4,000
2.	1570/18 07/12/2017	**Polina Maksimovna TARASOVA** 1995	Peredruk Aleksandr Dmitriyevich St Petersburg	12/06/2017, 2.00 p.m.	13/06/2017, in the evening, when the trial in the applicant's administrative-offence case started	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant remained in detention after the offence record had been compiled at 03.20 p.m. on 12/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – final decisions: St Petersburg City Court, 16/06/2017 (served on the applicant on the following day) and 23/06/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participating in the same unauthorised public event: under art. 19.3 of the CAO (administrative detention of 5 days) and under art. 20.2 § 5 of the CAO (fine of RUB 10,000). Final decisions: St Petersburg City Court, 16/06/2017 and 23/06/2017	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
3.	1829/18 11/12/2017	**Grigoriy Sergeyevich KOLOVERTNOV** 1992	Pyshkin Valentin Valentinovich St Petersburg	12/06/2017, 2.10 p.m.	13/06/2017, 4.30 p.m., when the trial in the applicant's administrative-offence case started	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant remained in detention after the offence record had been compiled	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: St Petersburg City Court, 20/06/2017 and 27/07/2017; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was convicted twice for participating in the same unauthorised public event: under art. 19.3 of the CAO (administrative detention of 3 days) and under art. 20.2 § 5 of the CAO (fine of RUB 12,000). Final decisions: St Petersburg City Court, 20/06/2017 and 27/07/2017	5,000
4.	21841/18 20/04/2018	**Yelena Sergeyevna ROMANOVA** 1986	Peredruk Aleksandr Dmitriyevich St Petersburg	06/12/2016, 5.00 p.m.	07/12/2016, 5.30 p.m.	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant remained in detention after the offence record had been compiled. As no administrative offence or criminal proceedings were initiated against the applicant after her release from detention, she brought a claim under the Code of Administrative Proceedings, arguing unlawfulness of her detention. The courts refused to deal with		4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
						it stating that she had to raise the issue within her administrative-offence proceedings which had however never had place (final decision: 30/10/2017, Supreme Court of Russia)		
5.	32581/18 02/07/2018	**Roman Yevgenyevich YURZANOV** 1975	Vologin Aleksey Borisovich Volsk	14/09/2016, 10.15 a.m.	14/09/2016, 4.00 p.m.	Escorting to a police station for an unknown purpose; unrecorded detention at the police station. The applicant then brought compensation proceedings, his detention was declared unlawful, and he was awarded RUB 10,000 (equivalent to EUR 142). Final decision: Supreme Court of Russia, 18/05/2018	Art. 3 - inadequate medical treatment in detention - lack, on 14/09/2016, of supervision of and assistance to the applicant - intoxicated arrestee who fell down several times. These facts were established in the compensation proceedings brought by the applicant. Final decision: Supreme Court of Russia, 18/05/2018	10,000
6.	41958/18 24/08/2018	**David Nikolayevich KANKIYA** 1989	Popkov Aleksandr Vasilyevich Sochi	09/02/2018, 11.15 a.m. 21/03/2018, 2.30 p.m.	09/02/2018, 2.25 p.m. 21/03/2018, 5.45 p.m.	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" on both occasions	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – final decisions: Krasnodar Regional Court, 14/03/2018 and 17/05/2018; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO;	6,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
							Art. 10 (1) - various restrictions on the right to freedom of expression: 1. On 10/02/2018 the applicant - locally well-known political activist and coordinator of the "Golos" NGO - was planning to give a lecture relating to elections; on 09/02/2018 he was approached by the police near his home and told to present his identity document and follow them to the police station. He was then sentenced to administrative detention of 5 days, final decision - Krasnodar Regional Court, 14/03/2018; 2. On 21/03/2018 the applicant was taking part in a press-conference relating to the recent presidential elections. He was then arrested on the grounds of allegedly conducting himself violently. The applicant was sentenced to administrative detention of 5 days, final decision - Krasnodar Regional Court, 17/05/2018	
7.	47107/18 27/09/2018	**Aleksey Alekseyevich KAREPIN** 1985	Zhdanov Ivan Yuryevich Vilnius	12/06/2017, 5.30 p.m.	13/06/2017, 02.40 a.m.	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant remained in detention after the offence record had been compiled	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/03/2018	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
8.	49955/18 10/10/2018	**Yana Vasilyevna ZAKHAROVA** 1994	Zhdanov Ivan Yuryevich Vilnius	05/05/2018, 3.30 p.m. 05/05/2018, 9.30 p.m.	05/05/2018, 6.45 p.m. 07/05/2018, when the trial in the applicant's administrative-offence case started	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" on both occasions	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Tver Regional Court, 17/05/2018	4,500
9.	53031/18 29/10/2018	**Roman Ivanovich GOLUBEV** 1988		15/06/2019	17/06/2019	The applicant was released from the correctional colony after having served his prison sentence with a two days' delay (calculated from the day when the release decision came into force)	Art. 3 - inadequate conditions of detention during transport - between 04/10/2016 and 12/05/2018 the applicant was transported in a van to court hearings more than twenty times, and each trip took about 7 hours. He was taken to a cell in the courthouse and made to wait there for several hours in cramped conditions (<0.5 sq. m per person). On 17/07/2018 he was transported between two detention facilities by train for six hours in cramped conditions (<0.9 sq. m per person)	6,000
10.	14440/19 22/02/2019	**Sofiya Aleksandrovna BAZHENOVA** 1989	Pershakova Yelena Yuryevna Moscow	14/06/2018, 4.15 p.m.	15/06/2018, 6.30 p.m., when the trial in the applicant's administrative-offence case started	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant remained in detention after the offence record had been compiled (final judgment in the administrative proceedings by the Irkutsk Regional Court on 23/08/2018)		4,000

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11.	11380/20 04/02/2020	**Yuriy Aleksandrovich TAKZHANOV** 1987	Balog Natalya Andreyevna Krasnoyarsk	27/07/2019, 8.45 p.m.	29/07/2019, 12.55 a.m., when the trial in the applicant's administrative-offence case started	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant remained in detention after the offence record had been compiled	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 05/08/2019; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
12.	13665/20 28/02/2020	**Grigoriy Aleksandrovich MISHUTIN** 1994	Perova Svetlana Yuryevna Moscow	10/08/2019, 6.05 p.m.	10/08/2019, 11.45 p.m.	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/10/2019	4,000
13.	15310/20 10/03/2020	**Vyacheslav Nikolayevich NEDOSEKOV** 1981	Andreyev Ashot Aleksandrovich Syktyvkar	10/07/2019, 7.30 p.m.	11/07/2019, when the trial in the applicant's administrative-offence case started	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances" (final judgment of the Syktyvkar Town Court of 06/11/2019)		4,000

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14.	11434/21 08/02/2021	**Vyacheslav Vasilyevich KORNICHENKO** 1978	Aksenova Darya Dmitriyevna Kolomna	15/07/2020, 11.00 p.m.	16/07/2020, 5.45 a.m.	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"	Art. 6 (1) lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 08/09/2020; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - dispersal of a rally on 15/07/2020 in Moscow	4,500
15.	13737/21 11/02/2021	**Pavel Igorevich KHOKHLOV** 1990	Vasin Vladimir Valeryevich Krasnoyarsk	13/08/2020 at 7.05 p.m.	14/08/2020, when the trial in the applicant's administrative-offence case started	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant remained in detention after the offence record had been compiled	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Krasnoyarsk Regional Court, 21/08/2020; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO; Art. 10 (2) – conviction for making calls to participate in public events – calls, on 12/08/2020, for rally "Russia without Putin" scheduled for 15/08/2020 in Krasnodar; conviction under art. 20.2 § 2	5,000

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							of the CAO, 8 days of administrative detention - final decision: Krasnoyarsk Regional Court, 21/08/2020	
16.	50533/21 25/09/2021	**Kirill Pavlovich SKRIPIN** 1994	Gak Irina Vladimirovna Rostov-on-Don	25/03/2021, 2.51 a.m. 02/04/2021, 10 a.m.	25/03/2021, 6 p.m. 03/04/2021, 2.50 p.m.	Detention (criminal) for more than three hours without any written record on both occasions	Art. 8 (1) - unlawful search - investigator's decision on 24/03/2021; the Voroshilovskiy District Court of Rostov-on-Don found the searches lawful on 26/03/2021; searches in the applicant's apartment on 25/03/2020; the applicant appealed against the decision of the District Court, to no avail. Final decision: Rostov Regional Court, 10/06/2021. No adequate and sufficient safeguards against abuse: lawyer not allowed to assist the applicant during the search, no adequate and sufficient safeguards against abuse: no effective judicial review of the search	6,000
17.	4241/22 23/12/2021	**Leonid Semenovich PRIVALOV** 1969	Shchukin Andrey Yevgenyevcich Nizhniy Tagil	18/11/2021, 2.13 p.m.	19/11/2021, 8.50 a.m., when the trial in the applicant's administrative offence case started	Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – final decisions: Sverdlovsk Regional Court, 25/11/2021 and 26/11/2021	4,000

[1] Plus any tax that may be chargeable to the applicants.